

21STCV36635 21STCV36635

County: los-angeles

Division: Civil Law and Motion

Department: SED

Hearing date: 2026-07-13

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Case Number: 21STCV36635 Hearing Date: July 13, 2026 Dept: SED

RUIZ-PELAYO, ET AL. V. COUNTY OF LOS ANGELES,
ET AL.

CASE NO.: 21STCV36635

HEARING: 07/13/26 @ 9:30 AM

#12

TENTATIVE RULING

Petitioner

Norma Ruiz-Pelayo's petition for approval of compromise of claim or action or disposition of proceeds of judgment for minor Claimant Valeria Guaman is CONTINUED to August 7, 2026, at 9:00am.

Moving Party to give notice.

Petitioner

Norma Ruiz-Pelayo (Petitioner) brings this petition for approval of compromise of claim or action or disposition of proceeds of judgment as the Guardian as litem and parent of the minor Claimant Valeria Guaman. (Claimant).

Legal Standard

Compromises of disputed claims brought by minors are governed in part by Code of Civil Procedure

section 372. The statute allows a guardian ad litem to appear in court on behalf of a minor claimant and gives the guardian ad litem the power to compromise the minor's claim "with the approval of the court in which the action or proceeding is pending." A petition for court approval of a compromise must be verified by the petitioner and must contain a full disclosure of all information that has any bearing upon the reasonableness of the compromise or covenant. (California Rules of Court (CRC) Rule 7.950.)

CRC Rule 7.952

subdivision (a) requires the attendance of the petitioner and claimant at the hearing on the compromise of the claim unless the court for good cause dispenses with their personal appearance.

CRC Rule 7.955(a)

requires courts to use "a reasonable fee standard" when approving and allowing the amount of attorneys' fees payable from money to be paid for the benefit of a minor and requires that courts "give consideration to the terms of any representation agreement made between the attorney and the representative of the minor . . . and evaluate the agreement based on the facts and circumstances existing at the time the agreement was made, except where the attorney and the representative of the minor . . . contemplated that the attorneys' fee would be affected by later events." CRC Rule 7.955(b) sets forth fourteen nonexclusive factors the Court may consider in determining a reasonable attorney's fee. CRC Rule 7.955(c) requires that a petition requesting Court approval and allowance of an attorney's fee under 7.955(a) must include a declaration from the attorney that addresses the factors listed in 7.955(b) that are applicable to the matter before the Court.

Analysis

Petitioner has submitted a completed Judicial Council form MC-350 on behalf of the minor Claimant, signed by Petitioner, together with a proposed Order Approving Compromise (form MC-351).

Petitioner seeks court approval of a settlement

under which Claimant will receive a gross settlement of \$295,000.00. (Petition, p. 3.) Petitioner also requests attorney's fees in

the amount of \$118,000.00, representing 40% of the gross settlement. (Petition, p. 5; Attachments 13(a), 17(a).) The fee request is supported by the

declaration of Allison Stone, Esq., submitted pursuant to California Rules of Court, rule 7.955(b). (Attachment

13(a).) After payment of approved

attorney's fees, medical expenses, and costs, the petition reflects that

Claimant's net recovery is \$149,949.86. (Petition, p. 6.)

Based on the petition, supporting

documentation, and counsel's declaration, the Court finds that the proposed

settlement is fair, adequate, and reasonable under the circumstances. The Court further finds that the requested

attorney's fees are supported by counsel's declaration addressing the factors

set forth in California Rules of Court, rule 7.955(b), and are reasonable.

However, the petition states that Claimant's

net recovery available for investment is \$149,949.86, while the annuity

attachment reflects a purchase price of \$155,385.02. (Petition, p. 6; Proposed Order, item 8(b)(2),

Attachment.) On the present record, the

Court cannot determine how the annuity will be funded or whether the proposed

disposition accurately reflects the amount of Claimant's net recovery.

Accordingly, the matter is CONTINUED to permit

Petitioner to submit supplemental evidence explaining the discrepancy. If necessary, Petitioner shall also file an

amended petition and proposed order reflecting the correct disposition of the

settlement proceeds.

Conclusion

Based on the foregoing, Petitioner Norma

Ruiz-Pelayo's petition for approval of compromise of claim or action or

disposition of proceeds of judgment for minor Claimant Valeria Guaman is

CONTINUED to August 7, 2026, at 9:00am. Plaintiff to provide notice..